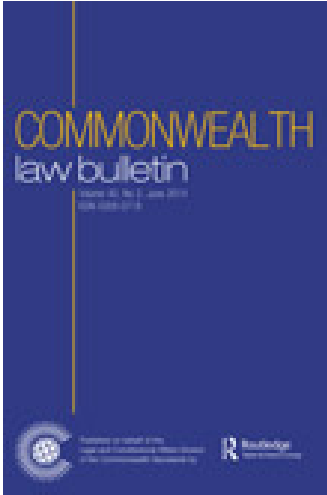




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Internet and social networks: freedom of expression in the digital age

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New technologies have revolutionised the way we communicate and the meaning of freedom of expression. As the Internet increasingly represents a key tool for individuals to exercise their right to freedom of expression, providing universal access should therefore be a priority for countries in order to achieve development goals. The Internet and the proliferation of online social networks have an important impact on privacy, forcing a re-evaluation of the limits to the right to freedom of expression. The author examines the issue of liability of Internet providers and analyses criminal prosecutions in the context of online social networks. As liability for comments made through online social networks becomes more common, questions arise as to what is deemed offensive and whether prosecution should take place in all cases. The article tries to provide answers to those questions through an analysis of case law from various Commonwealth jurisdictions.

1. Introduction

The purpose of this paper is to examine the individual's right to freedom of expression in the digital age, in particular via online social networks. An overview of online social networks is given in Section 2. The paper also examines the concept of freedom of expression in Section 3 and restrictions thereto in Section 4. Section 5 addresses the issue of digital divide in the context of freedom of expression. The question of breach of privacy via an online social network is examined in Section 6. As access to social networking sites is made using Internet intermediaries, their liability may be engaged if abuses of free speech are carried on their networks. The absence of an exemption for Internet intermediaries concerning the flow of information on electronic networks may stifle freedom of expression. The EU legal regime relating to exemption of liability for Internet intermediaries is examined in Section 7. Given that the digital world is to be treated no differently from the offline world, abuses of freedom of expression conducted through online social networks must also be sanctioned. Online social network abuses and criminal prosecutions are examined in Section 8. Defamation in the context of online social networks is addressed in Section 9. Finally, some recommendations on the way forward are made in Section 10.

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2. Online social networks: an overview

There is not one universally accepted term or definition for online social networks. There are numerous synonymous terms such as social networking service,¹ online social network² or social network site.³

Traditionally, it was enough to simply have an online presence for the dissemination of information. Such dissemination used to be one-way, that is, with no interaction between the sender and recipient(s) of the information. Today, online social networks such as Facebook, MySpace, Twitter and LinkedIn combine different Internet tools and provide interactions, exchanges and collaboration amongst users.

Social media is becoming one of the most important tools for people to express their opinions and engage in direct conversation with others. A number of studies have demonstrated that people use social networking sites for many purposes: to connect and to communicate with people they meet online,⁴ to share photos,⁵ to look at what other people are doing,⁶ as a form of entertainment⁷ and to find information.⁸

Historically,⁹ Classmates.com (1995) and SixDegrees.com (1997) were the first online social networks. In 2004, we saw new online social networks such as Bebo, MySpace and Facebook. In 2005, social media sites such as Flickr and YouTube followed.¹⁰ Facebook and MySpace allow users to create their personal

¹LA Adamic and E Adar, 'How to Search a Social Network' (2005) 27(3) SN 187, 188 ('Social networking services gather information on users' social contracts, construct a large interconnected social network, and reveal to users how they are connected to others in the network'.)

²F Schneider, A Feldmann, B Krishnamurthy and W Willinger, 'Understanding Online Social Network Usage from a Network Perspective' (Proceedings of the ACM SIGCOMM Conference on Internet measurement, 2009) 35 ('Online Social Networks (OSNs) such as Facebook, MySpace, LinkedIn, Hi5 and StudiVZ, have become popular within the last few years. OSNs form online communities among people with common interest, activities, backgrounds, and/or friendships. Most OSNs are web-based and allow users to upload profiles (text, images and videos) and interact with others in numerous ways'.)

³DM Boyd and NB Ellison, 'Social Network Sites: Definition, History and Scholarship' (2007) 13(1) JCMC 210, 211 ('We define social network sites as web-based services that allow individuals to (1) construct a public or semi-public profile within a bounded system, (2) articulate a list of other users with whom they share a connection, and (3) view and traverse their list of connections and those made by others within the system'.)

⁴N Ellison, C Steinfield and C Lampe (2007), 'The Benefits of Facebook "Friends": Exploring the Relationship between College Students' Use of Online Social Networks and Social Capital' (2007) 12(4) JCMC 1143.

⁵AN Joinson, "'Looking at", "Looking up" or "Keeping up with" People? Motives and Uses of Facebook' (CHI 2008 Proceedings, Florence, Italy, 5–10 April 2008).

⁶PL Rau, Q Gao and Y Ding, 'Relationship between the Level of Intimacy and Luring in Online Social Network Services' (2008) 24 CHB 2750.

⁷N Pennington, 'What it Means to be a (Facebook) Friend: Navigating Friendship on Social Network Sites' (2009) 2 ACTR; LP Tosun, 'Motives for Facebook Use and Expressing "True Self" on the Internet' (2012) 28 CHB 1510.

⁸Won Kim, Ok-Ran Jeong and Song-Won Lee, 'On Social Web Sites' (2010) 35 IS 215, 217.

⁹Boyd and Ellison (n 3).

¹⁰Ibid.; B Urstadt, 'Social Networking is Not a Business' MITTR (23 June 2008).

profiles, send each other messages and share content including photographs, videos, blogs and links. Facebook users connect with others by sending and accepting 'Friend' requests.

Whilst Facebook and MySpace allow their users to make all of their information available to the users, LinkedIn users can only contact each other if a pre-existing relationship exists between them. The features in LinkedIn are primarily geared towards professional networking. It allows users to invite and add business 'connections' to their contact list. Thus, first degree, second degree and even third degree connections can be used to gain an introduction to someone a user wishes to know or add. This feature allows users to find jobs, people and other opportunities. Employers can also list their jobs on this site and screen potential candidates. Contacts in this site are added through known connections and aimed at building trust among users. Job seekers can also search company profiles and statistics through this site. Information such as the list of employees and location of the company is the type of information available on this site. Another feature available on this site is called LinkedIn Answers which allows users to ask questions of the community. LinkedIn Groups is another feature that can be used to form new business or industry groups in any subject or area, like alumni associations, professional groups, sports groups and the like.

Blogs are an increasingly important web publishing medium. A blog (short for 'weblog' or 'web log') is a website whose pages comprise reverse chronologies of posts, with the most recent posts on the home page and older posts on archive pages, usually by months. Blogging services such as Google's Blogger¹¹, Typepad¹² and WordPress¹³ provide the forms and templates that enable a person to publish a blog site. The majority of blogs are maintained by individuals who express their personal interests and points of view.

Twitter is technically a blogging site, but unlike traditional blogs, Twitter encourages microblogging. Twitter users can post messages with a maximum length of only 140 characters. These short posts are commonly known as 'tweets' and, like the traditional blog, the author will have subscribers, known as 'followers', who will comment on the 'tweets'. Subjects can also be attached to 'tweets' allowing for searching, 'hashtags'. Another feature of Twitter is 'trending topics' which allows users to see words and phrases that have been popular within a particular region over a particular period of time.

¹¹ www.blogger.com

¹² www.typepad.com

¹³ www.wordpress.com

3. Freedom of expression

Freedom of expression is undoubtedly one of the basic human rights. The value of freedom of expression has been highlighted by courts in many jurisdictions.¹⁴ In the case of *R v Secretary of State for the Home Department, Ex p Simms*¹⁵ from the UK, Lord Steyn laid out arguably the key benefits that freedom of expression brings to a state:

- (1) firstly, it promotes the self fulfilment of individuals in society. According to the justification from individual self-fulfilment, individuals will not be able to develop morally and intellectually unless they are free to air their views and ideas in free debate with each other. This justification does not value speech in itself, but rather, instrumentally, as a means to individual growth;
- (2) secondly, in the famous words of Mr Justice Holmes (echoing John Stuart Mill), 'the best test of truth is the power of the thought to get itself accepted in the competition of the market': *Abraham v United States* 250 US 616 at 620 (1919), *per* Holmes J. (dissenting). The basic proposition is that truth is most likely to emerge from free and uninhibited discussion and debate; and
- (3) thirdly, freedom of speech is the lifeblood of democracy. The free flow of information is a safety valve: people are more ready to accept decisions that go against them if they can in principle seek to influence them.¹⁶ The justification for participating in a democracy, which is associated primarily with the American writer Meiklejohn,¹⁷ is that citizens cannot participate fully in a democracy unless they have a reasonable understanding of political issues. Therefore, open debate on such matters is essential.

There is a fourth justification for freedom of expression. Whether the argument used is Rawl's hypothetical social contract or Dworkin's basic postulate of the state's duty to treat its citizens with equal concern and respect, this justification for freedom of expression is centred around the liberal conviction that

¹⁴For example, in the Republic of South Africa, the importance of freedom of expression in a democratic society has been emphasised in numerous cases, including in *Khumalo and Others v Holomisa* (CCT53/01) [2002] ZACC 12; 2002 (5) SA 401; 2002 (8) BCLR 771 (14 June 2002) para 21 ('Freedom of expression is integral to a democratic society for many reasons. It is constitutive of the dignity and autonomy of human beings. Moreover, without it, the ability of citizens to make responsible political decisions and to participate effectively in public life would be stifled'); *South African National Defence Union v Minister of Defence* (CCT27/98) [1999] ZACC 7; 1999 (4) SA 469; 1999 (6) BCLR 615 (26 May 1999) para 7 ('Freedom of expression lies at the heart of a democracy. It is valuable for many reasons, including its instrumental function as a guarantor of democracy, its implicit recognition and protection of the moral agency of individuals in our society and its facilitation of the search for truth by individuals and society generally. The Constitution recognises that individuals in our society need to be able to hear, form and express opinions and views freely on a wide range of matters').

¹⁵[2000] 2 AC 115.

¹⁶*Ibid.*, 126.

¹⁷'The First Amendment is an absolute', (1986) Sup Ct Re 245.

matters of moral choice must be left to the individual. Thus, the argument defends virtually all kinds of speech and other forms of expression.

Such is the importance of freedom of expression that it has been recognised in courts even in the absence of a written constitution. For example, under UK common law, there has long been freedom to express an opinion or disclose information, provided that the expression is not forbidden by law.¹⁸ The common law right to freedom of expression has been developed by UK judges in the context of, for example, the right to protest,¹⁹ or the defences of fair comment²⁰ and qualified privilege²¹ to libel. Even before the UK adopted the Human Rights Act 1998 (HRA), it had been held that the common law provides the same protection to free speech as the European Convention on Human Rights.²² In *R v Secretary of State for the Home Department, ex p Simms*,²³ Lord Steyn stated that ‘the starting point is the right of freedom of expression’²⁴ (holding that Prison Rules and Standing Orders could not be applied to prevent prisoners giving interviews to journalists unless the latter agreed not to publish), and later re-affirmed that ‘there is a constitutional right to freedom of expression in England’.²⁵

The first case which came before the House of Lords concerning freedom of expression after the UK’s HRA incorporated the European Convention on Human Rights into UK domestic law was *R v Shayler*.²⁶ In this case, the House of Lords had to decide whether a public or national interest defence was available in a prosecution for unlawful disclosure under sections 1 and 4 of the Official Secrets Act. Lord Bingham of Cornhill reaffirmed that the fundamental right had been recognised at common law for many years but that ‘it was not until incorporation of the European Convention into our domestic law by the HRA 1998 that this fundamental right was underpinned by statute’.²⁷ In *R (Laporte) v Chief Constable of Gloucestershire Constabulary*,²⁸ Lord Bingham reaffirmed Sedley LJ’s observation in *Redmond-Bate v Director of Public Prosecutions* (1999)²⁹ that the HRA 1998 represents a ‘constitutional shift’.

¹⁸AV Dicey, *An Introduction to the Study of the Law of the Constitution* (10th edn, 1959) 239–240.

¹⁹*Brutus v Cozens* [1973] AC 854. In this case, Lord Reid held that holding that the word ‘insulting’ in the Public Order Act 1936, as amended, should not be construed to penalise the use of offensive language during an anti-apartheid demonstration at Wimbledon. Lord Reid held the view that ‘it would be wrong to stretch the existing criminal law to cover matters of this kind. This is an area of the law where very great questions of principle are involved relating to the freedom of the subject and, therefore, it is a matter for Parliament after due deliberation of all the questions involved [...]’ (p 859).

²⁰*Silkin v Beaverbrook Newspapers Ltd* [1958] 1 WLR 743.

²¹*Reynolds v Times Newspapers Ltd* [1999] 3 WLR 1010.

²²Lord Steyn in *R v Secretary of State for the Home Department, ex p Simms* [1999] UKHL 33, agreeing with *Attorney General v Guardian Newspapers Ltd* (No 2) [1990] 1 AC 109 283–284 (Lord Goff of Chieveley) and *Derbyshire County Council v Times Newspapers Ltd* [1993] AC 534 550H–551A (Lord Keith of Kinkel).

²³(n 15).

²⁴*Ibid.*, 125.

²⁵*Reynolds v Times Newspapers Ltd* [2001] 2 AC 127, 207.

²⁶[2003] 1 AC 247.

²⁷*Ibid.*, 267.

²⁸[2007] 2 AC 105, 127.

²⁹[1999] Crim LR 998.

At the regional level, in *Centro Europa 7 SRL and Di Stefano v Italy*,³⁰ the European Court of Human Rights (ECtHR) echoed previous jurisprudence when it stated in the context of pluralism in the audio-visual media that ‘there can be no democracy without pluralism. Democracy thrives on freedom of expression’. In *Von Hannover v Germany (No 2)*,³¹ the ECtHR reiterated the importance of the concept of freedom of expression as one of the essential foundations of a democratic society:

Freedom of expression constitutes one of the essential foundations of a democratic society and one of the basic conditions for its progress and for each individual’s self-fulfilment. Subject to paragraph 2 of Article 10, it is applicable not only to ‘information’ or ‘ideas’ that are favourably received or regarded as inoffensive or as a matter of indifference, but also to those that offend, shock or disturb. Such are the demands of pluralism, tolerance and broadmindedness without which there is no ‘democratic society’.

The importance of the right to freedom of expression is also recognised in major democracies. Before the adoption of the Canadian Charter of Rights and Freedoms, the Supreme Court of Canada, in the case of *Reference Re Alberta Statutes*,³² held that the abrogation of freedom of public discussion and debate was considered by the Court to constitute an interference with the operation of democratic government. In the Indian case of *Secretary, Ministry of Information and Broadcasting, Government of India & Ors v Cricket Association of Bengal & Ors*,³³ the Supreme Court of India stated, for the purposes of Article 19 of the Constitution of India, the following:

The freedom of speech and expression includes right to acquire information and to disseminate it. Freedom of speech and expression is necessary, for self-expression which is an important means of free conscience and self fulfilment. It enables people to contribute to debates of social and moral issues. It is the best way to find a truest model of anything, since it is only through it, that the widest possible range of ideas can circulate. It is the only vehicle of political discourse so essential to democracy.

In the Mauritian case of *Gilbert Ahnee & Ors v The Director of Public Prosecutions*,³⁴ the Judicial Committee of the Privy Council in an appeal against the conviction of scandalising the Supreme Court of Mauritius, recognised that:

[F]reedom of expression is the lifeblood of democracy [...] there is no doubt that there is a tension between freedom of expression and the offence of scandalising the court.

Freedom of expression is also recognised at the international level. Article 19 of the Universal Declaration of Human Rights provides that:

³⁰[2012] ECHR 974 [129].

³¹[2012] ECHR 228 [101].

³²[1938] SCR 100.

³³1995 AIR 1236 [44].

³⁴Privy Council Appeal No 28 of 1988.

Everyone has the right to freedom of opinion and expression; this right includes freedom to hold opinions without interference and to see, receive and impart information and ideas through any media and regardless of frontiers.

Additional international human rights instruments recognise the importance of the right to freedom of expression. Article 9 of the African Charter on Human and Peoples' Rights (ACHPR)³⁵ provides that every individual shall have the right to receive information and to express and disseminate his opinions within the law. The International Covenant on Civil and Political Rights (ICCPR) recognises the right to freedom of expression at Article 19, providing that everyone shall have the right to hold opinions without interference and the right to freedom of expression. Article 19(2) provides that this right shall include freedom to seek, receive and impart information and ideas of all kinds, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of his choice.

4. Restrictions to freedom of expression

Freedom of expression is not an absolute right. For example, article 10(2) of the European Convention on Human Rights incorporated in the HRA 1998 provides that the exercise of this freedom 'carries with it duties and responsibilities' and may be subject to 'such formalities, conditions, restrictions or penalties as are prescribed by law'. Not only must these 'formalities, conditions, restrictions or penalties' be provided for by law but they must also be necessary in the limited circumstances set out in that article.

Similar limitations are found in the constitutional instruments of many Commonwealth countries. Sections 3 and 12 of the Mauritius Constitution do not guarantee a wholly unrestricted freedom of expression. The freedom to receive and impart ideas and information without interference is subject to what is prescribed by law and done under the authority of the law in the interests of, amongst others, defence, public safety, public order and public morality, provided that that provision or 'the thing done under its authority' is reasonably justifiable in a democratic society. Chapter II of the Constitution of the Republic of South Africa provides for the freedom of expression but also limits such freedom. It does not extend to propaganda for war, incitement of imminent violence, advocacy of hatred that is based on race, ethnicity, gender or religion, and that constitutes incitement to cause harm. Section 12 of the Constitution of Botswana and Article 14 of the Constitution of the Republic of Singapore also guarantee an individual's freedom of expression and provide for exceptions to that freedom.

5. Freedom of expression and the digital divide

It is not disputed that the Internet has increasingly become a key means by which individuals can exercise their right to freedom of expression. The right to

³⁵The African Charter on Human Rights and Peoples' Rights came into force on 21 October 1986.

freedom of expression is as much a fundamental right of its own accord as it is an 'enabler' of other rights, including economic, social and cultural rights, as well as civil and political rights, such as the rights to freedom of association and assembly. By vastly expanding the capacity of individuals to enjoy their right to freedom of expression, the Internet boosts economic, social and political development, and contributes to the progress of humankind as a whole.

The search for a specific definition of 'digital divide' has been described as 'somewhat complex'³⁶ but the problem it encompasses refers to the gap between people with effective access to digital and information technologies, in particular the Internet, and those with very limited or no access at all.

The Internet, as a medium by which the right to freedom of expression can be exercised, can only serve its purpose if countries assume their commitment to develop effective policies to attain universal access to the Internet. Without concrete policies and plans of action, the Internet will become a technological tool that is accessible only to the elite while perpetuating the 'digital divide'.

In 2006, the International Telecommunications Union (ITU) together with the United Nations Conference on Trade and Development (UNCTAD) launched the Digital Opportunity Index (DOI).³⁷ The aim of the DOI is to provide a means of measuring the 'digital divide' and the progress in closing it. The DOI takes 11 internationally agreed ICT indicators and places them into three categories, namely opportunity, infrastructure and utilisation. The indicators used by the DOI centre on telephony (both mobile and fixed) and the Internet. According to the DOI 2007, economies with high DOI scores are mostly developed economies in Europe, North America, East Asia and the Pacific. They include all 30 OECD member states except Mexico. These economies provide good digital opportunity for most of their inhabitants, with varied and extensive infrastructure, relatively low prices and widespread use of new technologies. The group with medium DOI scores comprises diverse economies from Latin America and the Caribbean, Asia and North Africa. Notably it also includes the upper-middle income African states of South Africa, Botswana and Gabon, as well as Namibia and Senegal.³⁸ Digital opportunity in low-DOI economies is still expressed in terms of potential access to the Information Society that has not yet been fully realised. The DOI 2007 found that low-DOI economies include many lower income African and Asia-Pacific countries, with low levels of infrastructure, limited availability of the Internet and broadband and high prices as a proportion of local incomes. An hour's Internet access per day exceeds the average daily income in most of these countries. In order for these countries to fully participate in the information society prices must be reduced so that telecommunication services become more affordable.

It is worth noting that target 8f of the Millennium Development Goals calls upon countries, 'in consultation with the private sector, [to] make available the benefits of new technologies, especially information and communications'.³⁹ The

³⁶Kevin M Rogers, 'Digital Divide Revisited: The Grand Canyon of the Online Environment' (2007) 1 MUJLT 17.

³⁷The DOI 2007 <<http://www.itu.int/ITU-D/ict/doi/index.htm>> accessed 16 June 2013.

³⁸Gabon and Senegal are non-Commonwealth countries.

³⁹<<http://www.itu.int/en/ITU-D/Statistics/Pages/intlcoop/mdg/goals.aspx#goal8>> accessed 16 June 2013.

necessity of achieving this target was reiterated in the 2003 Plan of Action adopted at the Geneva World Summit on the Information Society, which outlines specific goals and targets to 'build an inclusive Information Society; to put the potential of knowledge and [information communication technologies] (ICTs) at the service of development; to promote the use of information and knowledge for the achievement of internationally agreed development goals'.⁴⁰

Given that the Internet has become an indispensable tool for realising a range of human rights and accelerating development and human progress, ensuring universal access and at affordable costs to the Internet should be a priority for all countries. Each country should thus develop a concrete and effective policy, in consultation with individuals from all sections of society, including the private sector to make the Internet widely available, accessible and affordable to all segments of population.

6. Online social networks and privacy

Privacy is of utmost importance in protecting liberal and democratic values in society. A right to privacy encapsulates the core of many other basic freedoms enjoyed in a civilised society. Without it, we would also be without freedom of conscience, freedom of religion or any protection of family life. In the Mauritian case *CB Lala v Le Mauricien & Ors*,⁴¹ a defamation suit, the Supreme Court stated that 'Freedom of expression is a limited right protected by the Constitution and it has also as one of its counterparts the right to privacy, to one's honour and reputation which is also protected by the Constitution.'

Privacy laws can either be created by the judiciary, broadening existing legal principles or Parliament. For example, in the UK, the concept of privacy as encapsulated by the tort of breach of confidence has been well established in the cases of *Kaye v Robertson*⁴² and *Douglas v Hello!*⁴³ The judiciary has not introduced any new forms of privacy rights *per se*, but has instead addressed the issues within the sphere of the existing tort of breach of confidence. In other countries, Parliament has passed specific laws relating to privacy. A few examples are Canada's Privacy Act⁴⁴ and the Personal Information Protection and Electronic Documents Act,⁴⁵ Australia's Privacy Act⁴⁶ and New Zealand's Privacy Act.⁴⁷

⁴⁰WSIS-03/GENEVA/DOC/5-E, World Summit on the Information Society, 12 December 2003. <<http://www.itu.int/wsisis/docs/geneva/official/poa.html>>. To implement this Plan of Action, in 2005, the ITU launched the 'Connect the World' project. <<http://www.itu.int/ITU-D/connect>> accessed 16 June 2013.

⁴¹2005 SCJ 42.

⁴²[1991] FSR 62.

⁴³[2001] QB 967 (CA).

⁴⁴RSC, 1985, c P-21.

⁴⁵SC 200, c 5.

⁴⁶Privacy Act 1988.

⁴⁷Privacy Act 1993.

The obligation to balance articles 8 and 10 of the ECHR has required the UK courts to mediate between one party's right to privacy and the other party's right to freedom of expression. The same approach has been adopted in Mauritius.⁴⁸

7. Freedom of expression and liability of Internet intermediaries

It is not always easy to identify the authors of illegal or harmful content in the digital world, where it is easy for a person to operate anonymously and/or from abroad. However, Internet intermediaries which are involved in the hosting and transmission of harmful and illegal contents have a physical presence and can be identified easily. Hence, the potential liability of Internet intermediaries with regard to the storage and transmission of illegal and harmful contents becomes a major issue. Recently, in *Belgische Vereniging van Auteurs, Componisten en Uitgevers CVBA (SABAM) v Netlog NV*,⁴⁹ one of the questions was whether a social network provider can be considered a hosting provider. The court's answer is clear: '[I]t is not in dispute that the owner of an online social networking platform [...] stores information provided by the users of that platform, relating to their profile, on its servers, and that it is thus a hosting service provider within the meaning of Article 14'.⁵⁰ The most important point to note from the decision in *SABAM v Netlog* is that providers of social network sites can rely on the hosting liability exemption.

In EU law, the Electronic Commerce Directive on certain legal aspects of information society services, in particular electronic commerce, in the Internal Market (Directive on electronic commerce)⁵¹ establishes an exemption regime for Internet intermediaries. This exemption regime strikes a 'balance between the different interests at stake'.⁵² The exemptions from liability for Internet intermediary activities are: transmission of information via a communication network,⁵³ provision of access to such a network,⁵⁴ storage of data temporarily ('caching') and hosting.⁵⁵ The Directive does not impose any obligation on Internet intermediaries to monitor the content they transmit or store, or any obligation to actively seek facts or circumstances indicating illegal activity.⁵⁶ However, Internet intermediaries are required to assist the police authorities by keeping them informed of alleged activities carried out by the users of their services.⁵⁷ An Internet service provider may also be ordered through an injunction to terminate or prevent an infringement⁵⁸ and, if notified, providers of hosting or cache-copy services must act expeditiously to remove the illegal content or disable access to it.⁵⁹

⁴⁸*Gordon-Gentil A. & Anor v Dayal J R* [2012] SCJ 144 and *Soornack Nandanev v Le Mauricien Ltd & Ors* [2013] SCJ 58.

⁴⁹[2012] 2 CMLR 18.

⁵⁰*Ibid.*, [27].

⁵¹2000/31/EC.

⁵²*Ibid.*, Recital 41.

⁵³Art 12 of the Directive on electronic commerce.

⁵⁴Art 13 of the Directive on electronic commerce.

⁵⁵Art 14 of the Directive on electronic commerce.

⁵⁶Art 15(1) of the Directive on electronic commerce.

⁵⁷Art 15(2) of the Directive on electronic commerce.

⁵⁸Arts 12(3), 13(2) and 14(3) of the Directive on electronic commerce.

⁵⁹Arts 13(1)(e) and 14(1)(b) of the Directive on electronic commerce.

It is beyond dispute that the Internet is an essential medium for freedom of expression. By providing such exemptions to intermediary providers, the European legislator has not only enabled the development of the information society but also taken a step towards promoting freedom of expression.

The guarantees under Article 10 of the ECHR also apply to the digital world. The Council of Europe's Declaration of the Committee of Ministers on human rights and the rule of law in the Information Society⁶⁰ expressly states that:

Freedom of expression, information and communication should be respected in a digital as well as in a non-digital environment, and should not be subject to restrictions other than those provided for in Article 10 of the ECHR, simply because communication is carried in digital form.

It is, therefore, important for countries to provide the appropriate legal regime for Internet intermediaries. In the absence of exemption from liabilities for Internet intermediaries with respect to information transmitted on their networks, the exercise of the right to freedom of speech may be stifled.

8. Online social networks and criminal prosecutions

The 'anonymity' facilitated by the Internet does not shield users from legal consequences. Reference may be made to the interesting observations of the learned Judge in the Singaporean case of *PP v Koh Song Huat Benjamin*.⁶¹ In this case, two bloggers were charged with having made racist 'invective and pejorative remarks' against the Malay-Muslim communities, contrary to section 3(1)(e) of the Sedition Act.⁶²

The virtual reality of cyberspace is generally unrefereed. But one cannot hide behind the anonymity of cyberspace, as each accused has done, to pen diatribes against another race or religion. The right to propagate an opinion on the Internet is not, and cannot be, an unfettered right. The right of one person's freedom of expression must always be balanced by the right of another's freedom from offence, and tempered by wider public interest considerations. It is only appropriate social behaviour, independent of any legal duty, of every Singapore citizen and resident to respect the other races in view of our multi-racial society. Each individual living here irrespective of his racial origin owes it to himself and to the country to see that nothing is said or done which might incite the people and plunge the country into racial strife and violence. These are basic ground rules. A fortiori, the Sedition Act statutorily delineates this red line on the ground in the subject at hand. Otherwise, the resultant harm is not only to one racial group but to the very fabric of our society.⁶³

⁶⁰Adopted by the Committee of Ministers on 13 May 2005 at the 926th meeting of the Ministers' Deputies <<https://wcd.coe.int/ViewDoc.jsp?id=849061>> accessed 8 May 2013.

⁶¹[2005] SGDC 272.

⁶²The bloggers pleaded guilty; one was sentenced to one month imprisonment, while the other, whose comments were considered less offensive, was sentenced to one day imprisonment and a fine of \$5000.

⁶³*PP v Koh Song Huat Benjamin* (n 62) [8].

The above extract highlights two important points. First, the learned Judge stressed the principle of responsibility when expressing views in the digital world. This implicitly acknowledges that blogs and openly accessible web discussion forums are part of the public realm and, hence, subject to general law. From this, one can extrapolate that speech in the digital world is to be treated no differently from the expression of speech in the real world.

In different countries, there are statutory provisions which deal with the sending of messages which are grossly offensive, or of an indecent, obscene or menacing character. For example, in the UK, under section 127(1)(a) of the Communications Act 2003, a person is guilty of an offence if he or she sends 'a message or other matter that is grossly offensive or of an indecent, obscene or menacing character' by means of a public electronic communications network. A similar legislative provision exists in Mauritius⁶⁴ and Kenya.⁶⁵

In the UK, besides the Communications Act 2003, there is also the Malicious Communications Act 1998. Under section 1(a)(ii) of the Malicious Communications Act 1998, 'any person who sends to another person a letter, electronic communication or article of any description which conveys [...] a threat [...] is guilty of an offence if his purpose in sending it is that it should [...] cause distress or anxiety to the recipient or to any other person to whom he intends that it or its contents or nature should be communicated'.

The application of these laws to social media platforms has not been without difficulties in the UK. The decision on where to draw the line has profound consequences for freedom of expression. On the one hand, it can be argued that a free society and free sociopolitical discourse requires that speech, no matter how shocking or distasteful, must be permitted. If free speech is limited only to speech that supports the views of the majority, then it is no freedom at all. On the other hand, there are those who argue that the interests of public order and the rights of others, particularly minorities, require certain speech acts to be restricted. In the leading case of *DPP v Collins*,⁶⁶ the defendant made a number of racist phone calls. In deciding whether an offence had been committed under section 127(1)(a) of the Communications Act 2003, the House of Lords considered the standards of an open and just multi-racial society,⁶⁷ taking into account the context of the words and all relevant circumstances. This is a question of fact. The House of Lords held that, for the purposes of section 127(1)(a), it must be proved that the sender 'intended his words to be offensive to those to whom they related or be aware that they may be taken to be so ... it can make no difference to criminal liability whether a message is ever actually received or

⁶⁴Under s 46(1)(h) of the Information and Communication Technologies Act, any person who uses an information and communication service, including telecommunication service (i) for the transmission or reception of a message which is grossly offensive, or of an indecent, obscene or menacing character; (ii) for the purpose of causing annoyance, inconvenience or needless anxiety to any person or (iii) for the transmission of a message which is of a nature likely to endanger or compromise State defence, public safety or public order commits an offence.

⁶⁵S 29 of Kenya's Information and Communication Act, Ch 411A.

⁶⁶[2006] 1 WLR 2223.

⁶⁷*Ibid.*, 2228.

whether the persons who do receive it are offended by it. What matters is whether reasonable persons in our society would find it grossly offensive'.⁶⁸

In the case of *Collins*⁶⁹, Lord Bingham opined that '[t]here can be no yardstick of gross offensiveness otherwise than by the application of reasonably enlightened, but not perfectionist, contemporary standards to the particular message sent in its particular context. The test is whether a message is couched in terms liable to cause gross offence to those to whom it relates'.⁷⁰ However, suggesting that because one section of society will find something 'grossly offensive' that the whole of society will is perhaps questionable. Indeed it could be argued that this may be the difference between 'offensive' and 'grossly offensive'.

The recent cases involving Mr Ahmed⁷¹ and Mr Woods⁷² illustrate the types of cases that the UK Crown Prosecution Service (CPS) and the judiciary are not prepared to condone when there is an abuse of the freedom of speech on online social networks. However, on the other side of the line is the case of Daniel Thomas, a semi-professional footballer who posted a homophobic message on Twitter about Olympic divers Tom Daley and Peter Waterfield. The CPS decided not to prosecute and explained that the message was a one-off offensive Twitter message, intended for family and friends, which made its way into the public domain. In addition, the CPS was satisfied that the message was not intended to reach Mr Daley or Mr Waterfield nor was it part of a campaign, or intended to incite hatred. Mr Thomas removed it reasonably swiftly and expressed remorse. The complainants subsequently informed the CPS that they felt that prosecution was warranted. Against this background, the CPS held the view that the message 'was not so grossly offensive that criminal charges need to be brought'.⁷³

In *DPP v Chambers*,⁷⁴ a conviction for sending by a public electronic communications network a message of a menacing character contrary to section 127 (1)(a) of the Communications Act 2003 was quashed. The Court considered that a 'threat' sent via Twitter had been intended as a joke and would have been understood as a joke by those reading it. On appeal against conviction, the Court held that a message which did not create fear or apprehension in those to whom

⁶⁸*Ibid.*, 2231.

⁶⁹*Ibid.*

⁷⁰*Ibid.*, 2228.

⁷¹BBC News, 'Azhar Ahmed sentenced over Facebook soldier deaths slur' (9 October 2012) <<http://www.bbc.co.uk/news/uk-england-leeds-19883828>> accessed 18 March 2014. The defendant, who posted a Facebook message saying 'all soldiers should die and go to hell' following the deaths of six British soldiers was given a 240 h of community service order.

⁷²BBC News, 'April Jones: Mathew Woods Jailed for Facebook Posts' (8 October 2012) <<http://www.bbc.co.uk/news/uk-england-lancashire-19869710>> accessed 18 March 2014. The defendant, who made a number of derogatory comments on Facebook about missing children April Jones and Madeline McCann was sentenced to 12 weeks' imprisonment (reduced to 8 weeks on appeal).

⁷³CPS News Brief, 'DPP Statement on Tom Daley Case and Social Media Prosecutions' (20 September 2012) <<http://blog.cps.gov.uk/2012/09/dpp-statement-on-tom-daley-case-and-social-media-prosecutions.html>> accessed 11 May 2013.

⁷⁴[2012] EWHC 2157.

it was communicated, or who might reasonably be expected to see it, fell outside section 127(1)(a), for the simple reason that the message lacked menace.

The Australian High Court recently considered offensive communications and freedom of expression. In *Monis v The Queen*,⁷⁵ the defendant was alleged to have written letters to the families of soldiers killed in Afghanistan. In his letters to the bereaved families, the defendant was very critical of the part the Australian soldiers had played in the war, referring to them in a 'denigrating and derogatory fashion'.⁷⁶ The defendant sought to have his indictment quashed on the grounds that section 471.12 of the Australian Criminal Code was invalid as it infringed the right to freedom of political communication implied by the Australian Constitution. The Australian Constitution prohibits Parliament from enacting a law that restricts freedom of communication on government and political matters, unless such law is reasonably appropriate and adapted to serve a legitimate end in a manner compatible with the maintenance of the constitutionally prescribed system of government in Australia. The District Court found that both of these requirements had been satisfied and dismissed the motion to quash the indictment. On appeal to the Court of Criminal Appeal, the Court found section 471.12 of the Criminal Code to be valid. The appellant appealed to the High Court. The Court was split 3–3. Allowing the appeal, French CJ, Hayne J and Heydon JJ found that section 471.12 of the Criminal Code burdened the implied right to freedom of communication about government and political matters.⁷⁷ Hayne J stated that '[H]istory, not only recent history, teaches that abuse and invective are an inevitable part of political discourse'.⁷⁸ Crennan, Keifel and Bell JJ, on the other hand, held that section 471.12 of the Criminal Code was not in breach of the Constitution as any burden placed upon political communication by that section was merely incidental. The judges held the view 'that communications of the kind which are prohibited by s 471.12 are limited to those which are of a seriously offensive nature. This does not suggest an effect upon the freedom which could be regarded as extensive. It does not prevent communications of a political nature which do not convey such offensive matter'.⁷⁹

The concerns expressed by French CJ, Hayne J and Hendon J with regard to section 471.12 of the Australian Criminal Code highlight the issues concerning the criminalisation of an 'offensive' conduct. As French CJ noted the word 'offensive' is a subjective concept, encompassing a wide range of behaviour: 'conduct which would cause transient displeasure or irritation and also conduct which would engender much more intense responses'.⁸⁰ The existence of criminal offences based on this subjective concept 'places in the hands of the Court, mediated by the emotional reactions of imaginary reasonable persons, a judgement as to whether the content is within or outside the prohibition'.⁸¹ Even

⁷⁵[2013] HCA 14.

⁷⁶*Ibid.*, [6].

⁷⁷*Ibid.*, [84].

⁷⁸*Ibid.*, [85].

⁷⁹*Ibid.*, [35].

⁸⁰*Ibid.*, [57].

⁸¹*Ibid.*, [63].

Crennan, Kiefel and Bell JJ acknowledged that ‘the word ‘offensive’, may be problematic in statements of what constitutes a criminal offence on any view’.⁸²

Given the difficulties of courts in determining when a statement is ‘offensive’ or ‘grossly offensive’, it is questionable whether it is within the proper remit of the criminal law to police offensive conduct. The freedom to express only ‘inoffensive’ opinions may be considered as no freedom at all.

In deciding whether or not to prosecute an offender who has sent an offensive message, the prosecuting authority will determine whether the message was ‘so grossly offensive’ as to warrant bringing criminal charges. The context and circumstances of the message are taken into account. However, given the vast amount of information on websites which, on first reading, may be considered as ‘grossly offensive’ by some but merely ‘distasteful’ by others, it cannot possibly be right and feasible that all such information must be examined. This exercise requires a considerable amount of human resources and time.

The question to ask is how the prosecuting authority will decide which messages on online social networks warrant investigation and prosecution of the offender. In the UK, the Director of Public Prosecutions issued ‘Interim Guidelines on prosecuting cases involving communications sent via social media’ on 19 December 2012. These have now become final Guidelines and have come into effect on 20 June 2013.⁸³ The Guidelines are suitably cautious about the dangers of prosecuting speech on social networks. The CPS follows a two-stage test when deciding whether to prosecute. The first stage is the evidential test – is there sufficient evidence to provide a realistic prospect of conviction? The second stage is the public interest test – is it in the public interest to prosecute? The Guidelines say a great deal on this topic. Key factors which may swing the balance are whether the communications: (i) constitute credible threats of violence to the person or damage to property; (ii) specifically target an individual or individuals and which may not constitute harassment or stalking within the meaning of the Protection from Harassment Act or which may not constitute other offences, such as blackmail; (iii) may amount to a breach of a court order – which should be referred to the Attorney-General; and (iv) communications which do not fall into any of the categories (i) to (iii) and fall to be considered separately because they may be considered grossly offensive, indecent, obscene or false. The Guidelines provide that the messages in category (iv) will be subject to a high threshold and, in many cases, prosecution will not be in the public interest.

The Guidelines also provide that prosecution should be contemplated where the communication concerned is more than offensive, shocking or disturbing, or satirical, iconoclastic or rude comment, or the expression of unpopular or unfashionable opinion about serious or trivial matters, or banter or humour, even if distasteful to some or painful to those subjected to it. With regard to children and young people, they provide that the age and maturity of suspects should be given significant weight, particularly if they are under the age of 18. Prosecution is rarely likely to be in the public interest in this case.

⁸²Ibid., [301].

⁸³Crown Prosecution Service, *Guidelines on Prosecuting Cases Involving Communications Sent via Social Media* <http://www.cps.gov.uk/legal/a_to_c/communications_sent_via_social_media/index.html> accessed 22 June 2013.

Prosecutorial guidance similar to the Guidelines may mitigate dated legislation whose application to online social networks could otherwise be incompatible with the right to freedom of expression.⁸⁴

9. Online social networks and defamation

There is no doubt that a person making a defamatory statement will incur liability. Online anonymity, however, poses new challenges to defamation. Although it may be stated that the person posting a defamatory message runs the risk of legal action, the task of identifying the party may not be an easy one. The direct relationship between the author of a statement and the publisher is no longer the rule in the digital world. In the majority of cases, users express their views through their own 'spaces', e.g. on a blog they have created or by using their profile on social networking sites; e.g. Facebook or Twitter. If the author is hiding behind the veil of anonymity, the question which arises is who is to be liable for the defamatory message. Hence, Internet service providers, search engines providers and hosting service providers may potentially be liable for the defamatory message.

No identification is required when a person chooses to go online. This has been the rule of operation throughout the evolution of the Internet. Even if each device that connects to the Internet is uniquely identified by an Internet Protocol (IP) address which is allocated at a specific time, Internet users routinely identified themselves through nicknames or screen names. Hence, online anonymity may be abused and becomes an element in online defamation cases.

Publication is an important requirement of defamation. Ordinarily, the place of publication is where the allegedly defamatory material is available in comprehensible form in a place where the person defamed has a reputation to damage. In the case of the Internet, material is not available in a comprehensible form until downloaded onto the computer of the person who has used a browser to retrieve it from the web server. In the area of online defamation, it is a settled principle that Internet publication takes place at the place or places where the statement is received or viewed by the third-party recipient of the materials. In Canada, for example, in the case of *Braintech Inc v Kostiuik*,⁸⁵ the Court of Appeal of British Columbia was invited to infer that material which had been uploaded on to a website in Canada had thereby been published in Texas, United States of America, and hence the court had to determine the case on the basis of the applicable law of Texas, the law of jurisdiction of publication. The court refused to do so, holding that the mere posting of information on a website, although defamatory, does not constitute a real and substantial connection to a jurisdiction in which the website can be accessed.⁸⁶ In Australia, in *Dow Jones v Gutnick*,⁸⁷ the Australian

⁸⁴JH Rowbottom, 'To Rant, Vent and Converse: Protecting Low Level Digital Speech' (2012) 71 CLJ 355; L Scaife, 'The Regulation of Social Media' (2012) 14 ECLP 6; D McGoldrick, 'The Limits of Freedom of Expression on Facebook and Social Networking Sites: A UK Perspective' (2013) 13(1) HRLR 125.

⁸⁵[1999] 171 DLR (4th) (BCCA).

⁸⁶The court stated '[t]he allegation of publication fails as it rests on the mere transitory, passive presence in cyberspace of the alleged defamatory material. Such a contact does not constitute a real and substantial presence'. Ibid., [65].

⁸⁷[2002] HCA 56.

High Court concluded that the place of publication of material uploaded onto a website is the place or places where the material was downloaded subsequently.⁸⁸ The same principle applies in the UK. In *Don King v Lennox Lewis*⁸⁹, Eady J. reaffirms the principle that publication is regarded as taking place where the defamatory words are published in the sense of being heard or read and the publication of an Internet posting takes place when it is downloaded.⁹⁰

The Yahoo! dispute is often cited to illustrate the complexities of a national law approach to freedom of expression on the Internet. Although the dispute arose out of a transgression of the French Criminal Code, the resulting litigation in France and in the United States was between Yahoo! and two French associations⁹¹ and followed civil law processes. The French court found that it had jurisdiction⁹² over Yahoo! and, applying the French law, ruled that the Yahoo.com auction site violated the French Criminal Code,⁹³ which prohibits exhibition of Nazi propaganda and artefacts for sale. In countries where defamation is also a criminal offence, the author of such statement may be prosecuted in the country where the statement is downloaded even if he or she is located in another country. For example, in the Mauritian case *Police v Ramdin*,⁹⁴ the accused, a UK resident, was charged and convicted under section 288 of the Criminal Code⁹⁵ with having wilfully and unlawfully defamed a senior judge by alleging on a website hosted outside Mauritius, a fact prejudicial to the reputation of the judge, namely that the judge is corrupt.

⁸⁸The court stated 'It is where that person downloads the material that the damage to reputation may be done. Ordinarily then, that will be the place where the tort of defamation is committed'. Ibid., [44].

⁸⁹[2004] EWHC 168.

⁹⁰Ibid., [15].

⁹¹La Ligue Contre le Racisme et L'Antisemitisme (LICRA) and L'Union des Etudiants Juifs de France (UEJF).

⁹²By virtue of art 46 of the French Code of Civil Procedure.

⁹³Art R645-1 of the French Criminal Code criminalises the wearing or display of any uniform, insignia or emblem evocative of those organisations or persons responsible for crimes against humanity.

⁹⁴2006 INT 286.

⁹⁵Under s 288 of the Mauritian Criminal Code, any person who imputes or alleges a fact prejudicial to the honour, character or reputation of the person to whom such fact is imputed or alleged is a defamation and commits an offence. On conviction, the person is liable to imprisonment for a term not exceeding five years and a fine not exceeding 50,000 rupees. The accused was convicted and sentenced to undergo six weeks imprisonment. It is to be noted that, in the recent Mauritian case of *DPP v Dhoocharika*, [2011] SCJ 356, the editor of *Samedi Plus* newspaper was jailed for three months for publishing defamatory comments about the Chief Justice made by a disbarred barrister. The Privy Council has given the editor leave to appeal and will be asked to reconsider its approach in *Ahnee v DPP* ([1999] AC 549), namely that '[...] it is permissible to take into account that in a country such as Mauritius, the administration of justice is more vulnerable than in the UK. The need for the offence of scandalising the court on a small island is greater'. See 'Outrage: Les Law Lords acceptent d'écouter l'appel de Dhoocharika' *Le Mauricien* (26 December 2012) <<http://www.lemauricien.com/article/outrage-les-law-lords-acceptent-d%E2%80%99%C3%A9couter-l%E2%80%99appel-dhoocharika>> accessed 18 March 2014; 'Media Law and Ethics in Mauritius, Preliminary Report by Geoffrey Robertson Q.C.' (April 2013) <<http://gis.gov.mu/English/Documents/Media%20Law%20-%20Preliminary%20Report.pdf>> accessed 18 March 2014.

Defamation on social media networks is not uncommon in Commonwealth jurisdictions. The first case heard in the United Kingdom in which the High Court considered defamatory remarks posted over Twitter, involving former New Zealand international cricket player, Chris Cairns.⁹⁶ In 2007, a fake Facebook profile, including personal details such as address, date of birth and contact details amongst others, was created under the claimant's, Matthew Firsht, name.⁹⁷ In the recent case of *Crookes v Newton*,⁹⁸ the Supreme Court of Canada had to consider the proper balance in the common law of defamation and the protection of freedom of expression. Abella J. remarked that 'Because the Internet is a powerful medium for all kinds of expression, it is also a potentially powerful vehicle for expression that is defamatory'.⁹⁹ In the South African case of *H v W*,¹⁰⁰ the South Gauteng High Court ruled on defamation made on Facebook. In August 2012, the Mauritian police arrested the author of comments made on Facebook. These comments were considered to amount to racial hatred against a particular community.¹⁰¹

10. Recommendations

As it can be seen above, the law of defamation has had to respond to the problems posed by the development of Internet technologies through maintaining the principles proper to defamation in the offline world. Countries which have the criminal offence of defamation on their statute books are encouraged to repeal that offence. More generally, the media law of countries must be reviewed and reformed in the context of Internet technologies.

Although the laws of many countries pre-date the online social networks era, their provisions are often expressed in general terms flexible enough to cover any form of communication. For example, in the area of defamation law, many courts have been satisfied with applying traditional principles for establishing liability, their argument being that those who publish online do so 'knowing that the information they make available is available to all and sundry without any geographic restriction'.¹⁰² On the other hand, some courts have been less than

⁹⁶*Cairns v Modi* [2010] EWHC 2859 (QB).

⁹⁷*Applause Store Productions Ltd v Raphael* [2008] EWHC 1781 (QB).

⁹⁸[2011] 3 SCR 269.

⁹⁹*Ibid.*, [37].

¹⁰⁰[2013] 2 All SA 218 (GSJ).

¹⁰¹B Herisson, 'Propos racistes sur Facebook: Krishnee Bunwaree retrouve la liberté conditionnelle' *L'Express (Mauritius)* (6 August 2012) <www.lexpress.mu/node/101765> accessed 29 April 2013.

¹⁰²CJ Gleeson, Gummow McHugh and JJ Hayne in the Australian case of *Dow Jones & Company Inc v Gutnick* [2002] HCA 56 [39]. Also cited *Lewis v King* [2004] EWCA Civ 1329 [29].

satisfied with the *status quo*¹⁰³ and investigations into reform are commonplace.¹⁰⁴ There may be instances, however, where the current law of countries is not always capable of addressing some of the new ways of communication to cause harm to others. In that regard, a review and reform of existing laws is needed.

Furthermore, given the importance of the Internet, in particular, the use of online social networks, in the exercise of one's freedom of expression, it is imperative for Internet access to be provided to all citizens at affordable charges. While the Internet has become an important tool for the exercise of the right to freedom of expression, it can be very expensive. It is worth noting that in a *Joint Declaration on Freedom of Expression and the Internet* adopted on 1 June 2011, the United Nations (UN) Special Rapporteur on Freedom of Opinion and Expression, the Organization for Security and Co-operation in Europe (OSCE) Representative on Freedom of the Media, the Organization of American States (OAS) Special Rapporteur on Freedom of Expression and the African Commission on Human and Peoples' Rights (ACHPR) Special Rapporteur on Freedom of Expression and Access to Information, emphasised that '[S]tates are under a positive obligation to facilitate universal access to the Internet'.¹⁰⁵

11. Conclusion

Freedom of expression is a fundamental right, fundamental to the existence of democracy and the respect of human dignity. The digital revolution offers unprecedented opportunities for the creation of a vibrant environment for freedom of expression and a democratic culture.¹⁰⁶ Today, there is no shortage of social networking sites. Social networking sites have led to the emergence of citizen-created content that enriches social-political debates and that increases the diversity of opinions, the free flow of information and freedom of expression.¹⁰⁷ Given the value of freedom of expression and the key benefits it brings to countries, universal access to the Internet must be granted to the people. Besides, all people should be allowed to express themselves freely and openly online, without fear of being disconnected.

¹⁰³See, eg, the comments by Kirby J in *Dow Jones & Co Inc v Gutnick*, *ibid.*, [166], where he suggests that 'national legislative attention and international discussion in a forum as global as the Internet itself' is required.

¹⁰⁴See, eg, *UK Law Commission Defamation and the Internet: A Preliminary Investigation Scoping Study No 2*, (December 2002); 'Defamation and the Internet: A New Challenge' (Queensland Parliamentary Library Research No 2003/11, May 2003); New Zealand Law Commission, 'The news media meets 'new media': Rights, Responsibilities and Regulation in the Digital Age' (December 2011); Media Law and Ethics in Mauritius. Preliminary Report (n 96).

¹⁰⁵<<http://www.oas.org/en/iachr/expression/showarticle.asp?artID=849&IID=1>> accessed on 16 June 2013.

¹⁰⁶JM Balkin, 'Populism and Progressivism as Constitutional Categories', (1995) 104 YLJ 1935, 1948–49.

¹⁰⁷E Bonson et al., 'Local e-Government 2.0: Social Media and Corporate Transparency in Municipalities', (2012) 29 GIQ 123, 124.

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